

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 15, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 15, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, September 14, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0085912 Creditors Adjustment Bureau v. D&L Siding

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Strike Defendant's Answer

Any party may serve and file a notice of motion to strike the whole or any part of a pleading within the time allowed to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) Upon such a motion, or at any time in its discretion, a court may strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).)

Plaintiff moves to strike defendant's answer because defendant is currently not represented and, as an entity defendant, may not appear in court on its own behalf. While a loss of attorney representation does not create an automatic forfeiture of its rights, an uncooperative corporate entity that is unwilling to obtain new counsel risks eventual loss of its rights through non-representation. (*Thomas G. Ferruzzo, Inc. v. Superior Court* (1980) 104 Cal.App.3d 501, 504.) However, attorney representation of a corporation is not an absolute prerequisite to a court's power to hear or determine a case. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149.) In its

sound discretion, a court may determine it is “more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected[.]” (*Ibid.*)

Here, the plaintiff fails to show that the defendant’s failure to obtain new representation amounts to an incurable defect at this time. Defendant’s prior counsel filed defendant’s answer with no glaring defect that would warrant striking the answer. Further, the order granting defense counsel’s withdrawal was only recently entered, and therefore, the court permits the defendant a reasonable amount of additional time to seek and obtain new counsel. The motion is denied without prejudice.

The court on its own motion sets the case for an order to show cause hearing regarding defendant’s representation and possible striking of the answer on **November 3, 2026 at 9:00 a.m. in Department 32**. Plaintiff shall file and serve notice of entry of this order by September 25, 2026.

2. M-CV-0097614 LHE Woodcreek W. Apts. v. Alomar, Mohanad

This tentative ruling is issued by **Commissioner Albert A. Erkel**. Oral argument will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to Set Aside Judgment

Defendant Mohanad Alomar moves to set aside judgment pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside an order due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made “within a reasonable time, in no case exceeding six months” from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, the motion is timely filed as it was filed mere days after judgment was entered and defendant subsequently sought and obtained an order shortening time to have the hearing advanced. As to grounds for relief, defendant argues they were out of state and booked a flight to return to California for the trial. Defendant argues that the flight was delayed for an operational issue and for a weather issue, so the second leg of the flight had to be rescheduled. Defendant states they arrived at the Sacramento airport at 9:30 a.m. the morning of trial, and while they came directly to the courthouse, the trial was already over. While these facts, if supported, may well show “mistake, inadvertence, surprise, or excusable neglect,” they are unsupported by any evidence as defendant provides no declaration. As such, there is no evidence on which the court could grant the requested relief.

Rather than deny the motion outright as unsupported by evidence, the personal appearance of the parties at the hearing is required on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678. Defendant Mohanad Alomar should be prepared to testify as to the grounds supporting the motion to set aside judgment.

3. S-CV-0043323 Miller, Scott A v. Dolmo, Bess-Carolina

These tentative rulings are issued by the **Honorable Charles D. Wachob**. If oral argument is requested, it will be heard on **September 24, 2026 at 8:30 a.m. in Department 2** by the Honorable Charles D. Wachob. Department 2 is located at 101 Maple Street, Auburn, California 95603. If the party who requests oral argument is late appearing, the court will adopt the tentative ruling.

Motion to Set Aside / Reconsider April 9, 2026 Rulings

Ms. Dolmo moves to set aside the court's April 9, 2026 rulings pursuant to Code of Civil Procedure section 473(b) and to reconsider its rulings pursuant to Code of Civil Procedure section 1008. This motion concerns the court's April 9, 2026 order granting Northern California Fertility Medical Center ("The Clinic")'s motion to enforce settlement, the court's April 9, 2026 order denying Ms. Dolmo's motion for contempt, for which oral argument was heard the same day (law and motion minutes, Apr. 9, 2026; order on CCP § 664.6, Apr. 9, 2026); and the court's ruling on submitted matter heard at oral argument on February 20, 2026 with a ruling on submitted matter issued on April 9, 2026 (Ruling on submitted matter, Apr. 9, 2026). The Clinic opposes the motion.

Preliminarily, the court's April 9, 2026 ruling Ms. Dolmo now challenges came about to enforce the parties' global settlement agreement whereby Mr. Miller would dismiss his claims and Ms. Dolmo agreed to dismiss her claims. The agreement was entered into on August 4, 2025, where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleveya v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, Ms. Dolmo argues the court's tentative ruling on April 7, 2026 scheduling oral argument for April 9, 2026 provided insufficient notice pursuant to Code of Civil Procedure section 1005(b). This argument is misplaced because Section 1005(b) sets forth the notice a party must provide for a noticed motion; it does not limit the court as to when oral argument on a noticed motion will be heard. Ms. Dolmo argues that she

was denied the opportunity to be heard on April 9, 2026 because she had filed a request for continuance on April 7, 2026 that was not ruled on and because she was unable to login by remote appearance. Ms. Dolmo did not invoke the procedures to schedule an ex parte hearing pursuant to California Rules of Court, rule 3.1200 et seq. and Local Rule 10.8, nor did she schedule a motion hearing pursuant to Local Rule 20.2; accordingly, the request was not properly before the court and is now moot. Self-represented litigants are held to the same procedural requirements as parties represented by counsel. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–85.) While the court’s file shows that Ms. Dolmo signed up for a remote appearance for the hearing on April 9, 2026, at 8:30 a.m. when the matter was called, Ms. Dolmo did not appear remotely or in person. Ms. Dolmo does not provide enough information explaining her nonappearance to justify Section 473(b) relief. Moreover, Ms. Dolmo falls short of showing sufficient “mistake, inadvertence, surprise, or excusable neglect” to justify Section 473(b) relief on any basis.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, Ms. Dolmo argues the court did not consider all briefing submitted, the court considered inadmissible evidence by considering settlement negotiations of the parties, and the court has all the information it needs to find Mr. Miller in contempt. These arguments fall short of showing new or different facts, circumstances, or law that could not have reasonably been produced for the underlying hearing.

Ms. Dolmo also asks the court to reconsider the April 9, 2026 ruling on submitted matter denying in part her motion to seal as to four documents the court denied the motion because the court could not locate and/or identify the documents in the court file. Ms. Dolmo provides some additional information, including the first page of two of the documents and different filing dates for two of the documents. However, the correct dates and first pages of the documents in question constitute information that Ms. Dolmo had at the time the underlying motion was heard and which she could have presented it to the court. Moreover, the court denied one of the documents because there were seven documents filed on that date and defendant does not identify which three of those seven Ms. Dolmo was seeking to seal; she does not address this issue in her current motion for reconsideration. As to the fourth document, Ms. Dolmo does not provide any additional information for the court to be able to locate that document in its file. Ms. Dolmo therefore falls short of showing new or different facts, circumstances, or law that could not have reasonably been produced for the underlying hearing.

Based on the foregoing, the motion to set aside and the motion for reconsideration are denied in their entirety.

Motion to Dismiss and Change Venue

Ms. Dolmo moves to dismiss Mr. Miller's complaint against her and for transfer of her claims against Mr. Miller to Sacramento County Superior Court. Northern California Fertility Medical Center opposes the motion.

Preliminarily, Ms. Dolmo's moving papers exceed California Rule of Court, rule 3.1113(d)'s page limit of 15 pages excluding the caption page, the notice of motion, and Ms. Dolmo's declaration. The court exercises its discretion to consider this brief in its entirety, but Ms. Dolmo is admonished to pay close attention to the California Rules of Court.

The motion is denied. The motion to dismiss Mr. Miller's claims against Ms. Dolmo is moot in light of the court's April 9, 2026 ruling granting The Clinic's motion to enforce settlement whereby the court ordered Mr. Miller's operative complaint dismissed with prejudice as to all parties. The dismissal is the result of the parties' global settlement on August 4, 2025 where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

As to the motion to transfer venue, a court may change the place of trial for various reasons, including when the complaint was filed in the improper court, an impartial trial cannot be had, or for convenience of the witnesses. (Code Civ. Proc., § 397, subds. (a)–(c).) Here, however, there are no grounds to justify an order transferring venue because Ms. Dolmo's claims against Mr. Miller were also dismissed with prejudice in the court's April 9, 2026 ruling pursuant to the agreement of the parties affirmed by Ms. Dolmo under oath in open court on August 4, 2025.

Ms. Dolmo also advances arguments that the April 9, 2026 rulings should be set aside pursuant to Code of Civil Procedure sections 473(b) and 1008. These arguments are duplicative of Ms. Dolmo's motion to set aside or reconsider the April 9, 2026 rulings and the request is denied for the same reasons outlined in the ruling above.

The motion to dismiss and to transfer venue is denied in its entirety.

4. S-CV-0050352 Marksys Holdings v. Redstone Print & Mail

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to be relieved as counsel

Counsel for Redstone Print & Mail, Inc. moves to be relieved as counsel. No response to this motion has been filed.

There is no evidence in the court's file of proof of service of the motion filed August 20, 2026. Based on the failure to demonstrate proper and timely service, the motion is denied without prejudice.

5. S-CV-0051883 Victoria Figone v. Moana Beach Prop. Owners Assn.

Defendants' motion for a limited reopening of expert discovery

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

6. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

Plaintiff's motion for summary adjudication is continued to **October 27, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. No further briefing is permitted.

7. S-CV-0054205 Keller Supply Co. v. Five Star Custom Pools

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Defendant and cross-complainant Merchants Bonding Company ("Merchants") moves for an award of attorneys' fees in the amount of \$10,000 from the amount previously deposited with the court by way of interpleader action pursuant to Code of Civil Procedure section 386.6(a). No opposition has been filed.

Merchants filed a motion to deposit and discharge surety pursuant to Code of Civil Procedure section 386, which the court granted on March 17, 2026. The court has discretion to award reasonable attorneys' fees and costs "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) A review of the court file reveals Merchants deposited \$25,000 on or about June 1, 2026. The court exercises its discretion to award attorneys' fees and costs to Merchants.

As to the hourly rate and hours incurred, Merchants submits evidence it incurred 37.8 hours at a rate of \$240 per hour and costs of \$1,145.20. (Decl. Sarfati and Exh. B thereto.) Merchants did not submit any billing statements. Although a party is not required to provide billing statements to support its request for attorneys' fees, the party must provide sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable. The declaration of counsel

submitted in support of the motion is insufficient for this purpose. The court cannot fairly evaluate the reasonableness of the request for fees in light of the information that has been provided.

Merchants may file and serve a supplemental declaration in support of its motion by October 13, 2026, which either includes copies of billing statements (which may have privileged information redacted), or a detailed summary of the number of hours expended by each attorney on each discrete task. This motion is continued to **October 27, 2026 at 8:30 a.m. in Department 32.**

8. S-CV-0055092 Taylor, Michele Ann v. Rosebay

This tentative ruling is issued by **Commissioner Albert A. Erkel**. If oral argument is requested, it will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel.**

Motion to Set Aside Discovery and Sanctions Order

Defendant Karrie Nicole Taylor moves pursuant to Code of Civil Procedure section 473(b) to set aside the April 10, 2026 order granting plaintiff's motion to compel further responses and awarding monetary sanctions. Plaintiff opposes the motion.

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Section 473(b) encompasses the court's discretionary relief to set aside "a judgment, dismissal, order, or other proceeding" due to "the party's mistake, inadvertence, surprise, or excusable neglect," or mandatory relief to set aside default, default judgment, or dismissal based on an "attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.*) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant submits evidence that defense counsel did not receive service of the motion to compel further responses served by email on March 11, 2026 noticed for April 10, 2026 because counsel uses a software that quarantined the email serving the motion papers as well as another email from plaintiff's counsel the same day. Defendant further submits evidence that this problem was compounded by counsel's paralegal taking ill with a sudden and reoccurring illness resulting in frequent absences. Plaintiff submits evidence that plaintiff's counsel sent defense counsel a meet and confer email on March 2, 2026 and a follow-up on March 9, 2026 and left a voicemail on March 11, 2026 before the motion to compel was ever filed. Plaintiff submits further evidence that plaintiff's counsel sent a follow-up email on April 1, 2026 prior to the motion being ruled on. While defense counsel knew about the ruling at least by May 8, 2026, an additional 54 days passed before the instant motion was filed. Defendant does not explain this lapse of time.

Based on the foregoing, the motion is not supported by sufficient diligent efforts to obtain Code of Civil Procedure section 473(b) relief. The motion is accordingly denied.

9. S-CV-0056043 Hill Top Center v. Kelly Architectural & Planning

Plaintiff's Motion to Compel Responses to Discovery without Objections and for Monetary Sanctions

Plaintiff Hill Top Center, LLC's objections to defense counsel, Dennis Wilson's declaration are overruled.

Plaintiff Hill Top Center, LLC's unopposed motion to compel responses to discovery without objections, is granted. Defendant Kelly Architecture & Planning, Inc. shall serve verified responses, without objections, to plaintiff's demand for inspection of documents, within 10 days. Plaintiff's request for monetary sanctions against defendant Kelly Architecture & Planning, Inc., is granted in the amount of \$1,200.

Plaintiff's Motion for Leave to File First Amended Complaint

Plaintiff Hill Top Center, LLC's unopposed motion for leave to file first amended complaint is granted. Plaintiff Hill Top Center, LLC shall file and serve the first amended complaint by **September 28, 2026**.

**10. S-CV-0056103 Gilchrist, Debra v. Ruth, Charity
R-SC-0028791 Gilchrist, Debra v. Ruth, Charity
R-SC-0028916 Gilchrist, Debra v. Ruth, Charity**

Motion to Consolidate

Defendants move to consolidate three separate actions. Plaintiff opposes the motion. The court notes plaintiff filed a response to the reply without leave of court, and the court declines to consider it.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc. § 1048 (a).) Consolidation for all purposes is appropriate when the parties between the actions are identical. (*Sanchez v. Super. Court* (1988) 203 Cal.App.3d 1391.) Consolidation does not alter the parties' rights; rather, its purpose is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions. (*Est. of Baker* (1982) 131 Cal.App.3d 471, 485.) Relevant factors for consolidation, therefore, include: the predominance of common legal or factual issues; overlap in evidence and witnesses; the convenience of parties and attorneys; the relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg v. Dalkon Shield Claimants Tr.* (1996) 48 Cal.App.4th 976, 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)

Here, all three matters involve the same parties and the same neighboring properties concerning alleged damages to plaintiff's property caused by the same named defendants. In the unlimited civil action, defendants have asserted a cross-complaint against plaintiff. The court finds there are common issues of fact and law between these three cases; overlap in evidence and witnesses; convenience of parties and attorneys; relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg* 48 Cal.App.4th at 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)

For the foregoing reasons, the motion to consolidate is granted. Case nos. S-CV-0056103, R-SC-0028791, and R-SC-0028916 are ordered consolidated, and the lead case is designated as S-CV-0056103.

11. S-CV-0056153 Reddy, Pardha v. Dismukes, Bret

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants' Demurrer to Dismuke Construction and Bret Dismukes' Amended Cross-Complaint

Cross-defendants Pardha Reddy and Catherine Reddy demur to the first, second and third causes of action alleged in the first amended cross-complaint for breach of contract, fraud, and declaratory relief. Cross-complainants Dismuke Construction and Bret Dismukes oppose the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Breach of Contract

The demurrer is sustained as to cross-complainants' first cause of action for breach of contract.

To state a cause of action for breach of contract, plaintiff must plead the existence of a contract, his performance of the contract or excuse for nonperformance, defendant's breach and resulting damage. Where the existence of a written contract is alleged, plaintiff must attach and incorporate by reference a copy of the written agreement, or set

out the terms verbatim. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.)

Cross-complainants allege:

Cross-defendants agreed to pay cross-complainants for work performed. Cross-defendants and cross-complainants entered into various agreements, both written, verbal and implied-in-fact. The written contracts are attached hereto as Exhibit A.

Cross-complainant and cross-defendant entered into multiple agreements, they were written and/or verbal and/or implied-in-fact agreement which provided the parties would fairly and honestly handle the agreements and uphold their promises. To date, cross-complainant has discovered that cross-defendant refuses to honor the promises. Cross-defendant failed to fully perform the obligations, particularly with respect to the contracts as required. Predictably, cross-complainant has suffered damages and monetary sums as a result of cross-defendant's actions. Cross-complainant did all, or substantially all, of the significant things that the contract required him to do or was excused from doing those things. All conditions required by the contract for cross-defendant's performance had occurred or were excused. Cross-defendant failed to do as the contract required it to do. As a proximate result of defendant's said breach of contract, cross-complainant has sustained damages.

(Am. cross-complaint, ¶¶ 9, 14-21.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds ... In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10 (g).) “It is clear that the pleader must specify whether the contract is written or oral when his cause of action rests on an express contract.” (*Moya v. Northrup* (1970) 10 Cal.App.3d 276, 281.)

Cross-complainants attach the purported written agreements as Exhibit A. Cross-complainants otherwise fail to plead the terms of any alleged oral contracts or implied contracts, rendering the claim uncertain. Cross-complainants also fail to allege what terms of the written, oral, and implied contracts were breached.

Fraud / Misrepresentation

The demurrer is sustained as to cross-complainants' second cause of action for fraud and deceit.

To state a claim for fraud, plaintiff must allege the following elements: a

misrepresentation, with knowledge of its falsity, with the intent to induce another's reliance, actual and justifiable reliance, and resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.) Fraud must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* 245 Cal.App.4th 821, 838.) The first amended cross-complaint falls short of these pleading requirements.

Declaratory Relief

Cross-complainants' third cause of action for declaratory relief rests entirely on the defective allegations supporting the first and second causes of action. In light of the court's ruling sustaining the demurrer as to the first and second causes of action, the demurrer is also sustained as to the third cause of action.

Conclusion

The demurrer is sustained in its entirety with leave to amend. Any second amended cross-complaint shall be filed and served on or before **September 28, 2026**.

12. S-CV-0056853 Spanos, Stefani v. Woodstream Golden Sands

Defendants' Demurrer to Plaintiff's Complaint

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) demur to the second and seventh causes of action for nuisance and retaliatory eviction. FPI separately demurs to the third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment, and sixth cause of action for constructive eviction. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

Defendants' request for judicial notice of the parties' lease agreement is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only

refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Second Cause of Action

Defendants demur to plaintiffs' second cause of action for nuisance as duplicative of the first cause of action for negligence. "Nuisance is an entirely separate cause of action from negligence... Even if the nuisance claim relies on the same facts about lack of due care supporting the negligence claim, it does not mean the claims are identical or duplicative." (*Lynch v. Peter & Associates* (2024) 104 Cal.App.5th 1181, 1198.) To prevail on an action for private nuisance, a plaintiff must first prove an interference with the plaintiff's use and enjoyment of his or her property. (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 938.) Second, "the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer 'substantial actual damage.'" (*Ibid.*) Third, "[t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be 'of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (*Chase v. Wizmann* (2021) 71 Cal.App.5th 244, 253.)

The complaint alleges sufficient facts to allege a cause of action for nuisance. (Compl. ¶¶ 90-91, 94-95.) As to the second cause of action for nuisance, defendants' demurrer is overruled.

Third, Fourth and Fifth Causes of Action

FPI demurs to plaintiffs' third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, and fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment on the grounds it is not a party to the subject lease agreement, a fact which plaintiffs concede.

As to the third cause of action for breach of contract, fourth cause of action for breach of the implied warranty of habitability, and fifth cause of action for breach of the implied warranty of peaceful and quiet enjoyment, FPI's demurrer is sustained with leave to amend.

Sixth Cause of Action

FPI demurs to plaintiffs' sixth cause of action for constructive eviction on the grounds it is neither a landlord nor an owner of the property. "Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property." (Civ. Code, § 1714.) Plaintiffs may allege tort claims, such as constructive eviction, against an agent of the owner. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 929-30; *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1030-31, 1036; *Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 901.)

The complaint alleges sufficient facts to allege a cause of action for constructive eviction against FPI. (Compl. ¶¶ 143-147.) As to the sixth cause of action for constructive eviction, FPI's demurrer is overruled.

Seventh Cause of Action

Defendants demur to plaintiffs' seventh cause of action for retaliatory eviction on the grounds plaintiffs fail to satisfy the heightened pleading requirements applicable to a claim for retaliatory eviction under Civil Code section 1942.5. Specifically, plaintiffs fail to allege facts that plaintiffs engaged in protected activity within the 180-day period preceding the alleged constructive eviction.

As to the seventh cause of action for retaliatory eviction, the demurrer is sustained with leave to amend.

Any amended complaint shall be filed and served on or before **September 28, 2026**.

Defendants' motion to strike

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) move to strike plaintiffs' claim for punitive damages. FPI also moves to strike the prayer for attorneys' fees as against FPI. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

The motion is granted. The allegations of the complaint do not sufficiently allege facts establishing oppression, fraud or malice so as to sustain the prayer for punitive damages. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894; *Smith v. Superior Court* (1992) 10 Cal.Ap.4th 1033, 1041-42.) Further, plaintiffs fail to allege a statutory or contractual basis to support an award of attorneys' fees against FPI.

Defendants' motion to strike is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 28, 2026**.

13. S-CV-0056872 Dowling, Teresa Evelyn v. DMV

Status Conference

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner lodged the administrative record on September 3, 2026. However, according to the parties' joint declaration filed the same day, it appears petitioner intends to file a

motion to augment the administrative record. A review of the court's file reveals no such motion hearing has been reserved pursuant to Local Rule 20.2.

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Demurrer to the Complaint

Defendant Selene Finance, LP demurs to the first, second, third, and fourth causes of action in the initial complaint. The demurrer is denied as moot in light of plaintiff's first amended complaint filed in advance of the time to oppose the demurrer. (Code Civ. Proc., § 430.41, subd. (e)(1).)

Motion for Preliminary Injunction

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves for a preliminary injunction against defendant Selene Finance, LP ("Selene") pursuant to Code of Civil Procedure 526 and 527. Specifically, plaintiff moves for a court order requiring defendant Selene to (1) pay all homeowner's insurance premiums from plaintiff's escrow account on or before thirty days prior to each policy renewal date for the duration of this litigation and provide plaintiff with written proof of each payment within five days of disbursement; (2) refrain from enforcing, collecting, or demanding monthly mortgage payments in excess of the contracted amount of \$2,319.84 without first obtaining a court order authorizing any escrow adjustment, pending completion of the court-ordered accounting; (3) refrain from reporting any adverse credit information, initiating or advancing any foreclosure proceedings based on a delinquency, and (c) imposing any forced-placed insurance without first complying with RESPA's force-placed insurance notice requirements; and (4) maintain the status quo regarding real property at 4932 Gladding Road, Lincoln, California 95648. Selene opposes the motion.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, "the court must consider whether the party seeking the injunction is likely to prevail on the merits" and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less

severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

As a preliminary issue, this motion was filed on July 14, 2026 when the operative pleading was the first amended complaint. However, plaintiff has since filed a second amended complaint in response to a demurrer to the first amended complaint. As this motion for preliminary injunction is based on the first amended complaint rather than the operative complaint, the motion is moot.

Even if the court could reach the merits, plaintiff's showing as to likelihood of success on the merits is insufficient. Plaintiff submits evidence by way of his declaration that the original loan servicer LoanDepot.com, LLC has been overcharging him for his monthly payments since 2021 and that defendant Selene continued the practice of overcharging him for his monthly payments when they assumed the loan in February 2026. Plaintiff also exhibits to his declaration, including the promissory note as Exhibit A and Selene's two responses to plaintiff's demand letter as Exhibits B and C. Plaintiff declares that LoanDepot.com, LLC and then Selene when it assumed the loan have been collecting escrow funds for homeowner's insurance premiums and property taxes. (Foult Decl., ¶¶ 7–8.) Just providing the promissory note does not provide sufficient evidence as to escrow amounts to be collected; accordingly, plaintiff has not shown a likelihood of success on the merits as to being overcharged. The court further observes that Exhibits A through C all appear to be submitted in partial form only, as Exhibit A is a single page with "page 1 of 3 pages" listed in the footer and Exhibits B and C appear to be cut off, ending in the middle of the letters. Moreover, plaintiff does not re-submit the exhibits he submitted with his prior motion for preliminary injunction filed on May 29, 2026, several of which he is relying on for this current motion, such as his demand letter, Selene's welcome letter, and plaintiff's demand letter. While these documents exist in the court file, plaintiff's failure to resubmit them in support of his current motion creates a notice issue for defendant to try to figure out what documents he is relying on and it creates an unnecessary burden on the court to try to do the same. In summary, plaintiff has not shown he is likely to succeed on the merits.

As to irreparable harm, the court need not address irreparable harm, but the court observes at least as to insurance premiums, plaintiff has likewise made an insufficient showing as to the second prong. Both parties acknowledge insurance premiums were paid during 2026 and it is purely speculative that defendant would fail to pay ongoing insurance obligations.

Based on the foregoing, the motion for preliminary injunction is denied.

Future Motion Hearings

Given plaintiff's second amended complaint filed on August 7, 2026, it appears to the court the following motion hearings are likewise moot and should be denied as such. The

court lists these hearings here should the parties wish to withdraw these motions:

- Plaintiff's motion for leave to file a second amended complaint (filed Aug. 25, 2026) and currently scheduled for October 6, 2026
- Defendant Selene Finance LP's demurrer to the first amended complaint (filed Jul. 29, 2026) and currently scheduled for October 6, 2026

15. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants' Demurrer to Complaint

Defendants' request for judicial notice is granted.

Defendants demur to the fourth cause of action alleged in the complaint for intentional interference with expected inheritance (IIEI). Plaintiff opposes this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants contend the fourth cause of action fails because when a plaintiff already has adequate remedy in probate, an IIEI tort claim cannot proceed. (See *Beckwith v. Dahl* (2012), 205 Cal.App.4th 1039, 1052; *Halperin v. Halperin* (2026) 118 Cal.App.5th 193, 200.) In opposition plaintiff argues his remedies in probate are inadequate as in the probate matter he is unable to pursue tort remedies against defendant Barnes.

“[T]he unavailability in probate of tort damages against individual actors does not establish the inadequacy of probate and provides no basis for an IIEI claim to proceed.” (*Halperin, supra*, 118 Cal.App.5th at 203.) “The tort of intentional interference with inheritance did not arise out of a perceived need to punish alleged wrongdoers. The tort developed to protect valid testamentary expectancies and to provide a remedy when the probate process proved inadequate. The proper focus of the tort is on the just distribution of estate assets; when that can be achieved in probate, the need for the tort disappears.” (*Munn v. Briggs* (2010) 185 Cal.App.4th 578, 590 (int. quotation omitted).)

Plaintiff fails to adequately allege the absence of an adequate probate remedy. The demurrer is sustained as to the fourth cause of action for intentional interference with expected inheritance. As plaintiff fails to satisfy his burden of demonstrating the existence of additional factual allegations which could cure the deficiencies, leave to

amend is denied. Defendants shall file an answer to plaintiff's complaint on or before **September 28, 2026**.

16. S-CV-0057323 Rodriguez, Morgan v. FlexCare

Defendant's motion to compel arbitration and motion to stay is continued to **November 10, 2026 at 8:30 a.m. in Department 32**.

17. S-CV-0057953 In Re the Petition of Burke, Tyler John

Status Conference, Petition for Dissolution of a Corporation and Appointment of Receiver

Petitioners Tyler John Burke and Donald N. Rios petition for judicial dissolution of respondent RBM Construction. Respondents have not yet appeared.

It does not appear the petition is yet at issue. While petitioners filed proofs of service showing service of the petition, no summons has been sought or issued. No briefing has been submitted to the court. The court also observes that while the verified petition references two exhibits, no exhibits are attached to the petition. Moreover, this hearing was previously continued from August 4, 2026 when the court directed petitioners' counsel to provide notice to respondents. There is no evidence in the court's file that respondents have notice of this continued hearing.

The appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.
